

Sau. Geetabai W/O Madhavrao Lokhande vs Madhavrao S/O Maruti Lokhande on 27 November, 2008

Author: V.R. Kingaonkar

Bench: V.R. Kingaonkar

(1)

IN THE HIGH COURT OF JUDICATURE OF BOMBAY

BENCH AT AURANGABAD

FIRST APPEAL NO. 3781 OF 2008

Sau. Geetabai w/o Madhavrao Lokhande,
R/o Naur, Tq. Shrirampur, District
Ahmednagar.

APPELLANT

VERSUS

1. Madhavrao s/o Maruti Lokhande
2. Sharad Bhanudas Lokhande
3. Sau. Sangeeta Prabhakar Lokhande,
All r/o Belapur, Tq. Shrirampur,
District Ahmednagar.

RESPONDENTS

.....

Mr. V.D. Hon, advocate for the appellant. Mr. V.D. Sapkal, advocate for the respondents.

.....

[CORAM: V.R. KINGAONKAR, J.] DATE : 26th & 27th November, 2008

ORAL JUDGEMENT :

1. Challenge in this appeal is to judgement rendered by learned Civil Judge (S.D.), Shirampur, whereby Special Civil Suit No. 22/2005 came to be dismissed.

2. Appellant is the original plaintiff. She filed suit for separate maintenance allowance and creation of charge of her maintenance allowance on the properties of respondent No.1/defendant No. 1. The respondents No. 2 and 3 are the original defendants No. 2 and 3. They have set up claim of adoption of respondent No. 2 by the respondent No. 1.

3. The appellant claims to be legally wedded wife of the respondent No.1. Her case before the Trial Court was that her marriage with the respondent No. 1 was performed prior to about 48 years in accordance with the rites and tenets of Hindu religion. She resided with him in the matrimonial house for about a couple of years after the marriage. He drove her away after consortium of about two (2) years. Though she and members of her natural family had made the efforts for restitution of conjugal rights, yet, he did not allow her to resume the matrimonial relationship. He deserted her without any sufficient reason. He is a womanizer and has squandered lacs of rupees in order to fulfil his sensual lust. He is a well-off person having agricultural properties, house property and movables, as described in the plaint.

4. The appellant further asserted that the respondents No. 2 and 3 have no concern with the respondent No. 1. However, in order to grab the properties of respondent No.1, the respondent No. 2 is now representing himself as an adopted son of the respondent No. 1 and the respondent No. 3 is representing herself as the daughter-in-law of the latter. The appellant further alleges that though her brothers maintained her properly, yet, due to oldage, now, they are reluctant to maintain her. She requires medical treatment due to oldage. She needs separate maintenance allowance of Rs. 25,000/- per month. The respondent No. 1 avoided to pay such maintenance allowance to her inspite of demands. He is making haste to dispose of the suit properties. The other two (2) respondents are bent upon illegally taking over the properties of the respondent No.1 under false pretext that they are his adopted son and the daughter-in-law. Consequently, she filed suit for separate maintenance allowance and creation of charge of the maintenance allowance on his immovable property.

5. By filing written statement (Exh-22), the respondent No. 1 resisted the suit. He denied relationship with the appellant. He denied that she is his legally wedded wife and that the marriage was performed prior to about 48 years of the suit. He contended that the appellant and himself are members of 'Taru' community and there was previous relationship between her father and his paternal uncle. He asserted that his father died before his birth and thereafter, his mother brought up him. He asserted that he and his mother were under protective care of his uncle during his minority. He owns seven (7) acres area of ancestral land. According to him, somewhere in 1953-54, his paternal uncle, by name Vithal and some other relatives had given him offer for settlement of his marriage with the appellant.

The appellant was then minor and was partly lunatic.

He too was minor at the relevant time. He asserted that his mother refused to accept the proposal of his marriage with the appellant. He further asserted that inspite of the insistence of the paternal relatives of the appellant, as mother did not budge and, therefore, the marriage could not be performed. With the result, the relations between both the families were strained.

Her relatives thereafter had put spokes in settlement of his marriage with other brides and, therefore, he remained unmarried. He thus denied status of the appellant of his married wife. He contended that her relatives had obtained her thumb impression on the false plaint.

6. The respondents No. 2 and 3 submitted that the respondent No. 1 has adopted the respondent No.2.

They further submitted that the appellant has no locus standi to seek maintenance allowance from the respondent No.1. The respondents, therefore, sought dismissal of the suit.

7. The parties went to trial over issues settled below Exh-62 by the learned Civil Judge (S.D.). They adduced oral and documentary evidence in support of the rival contentions. The Trial Court came to conclusion that the appellant did not prove factum of marriage. The Trial Court held that she is not legally wedded wife of the respondent No.1. The Trial Court repelled her contention that the respondent No. 1 drove her out of the the matrimonial home after couple of years and that she had resided with him for about couple of years after the alleged marriage. It is for such a reason that the suit came to be dismissed.

8. The points for determination in this appeal are :

(i) Whether, in the facts and circumstances of the present case, the factum of marriage is proved by the appellant and the finding of the Trial Court in this context is improper, incorrect and illegal ?

(ii) Whether, in the facts and circumstances of the present case, the appellant duly proved that she is entitled to seek separate maintenance allowance and creation of

charge thereof under section 18 of the Hindu Maintenance and Adoption Act, 1956 on account of neglect and desertion at hands of the respondent No. 1 ? If yes, at what rate ?

9. Heard learned counsel for the parties.

10. This is somewhat unusual case in which after long drawn period of about 48 years, the appellant rushed to the Court to claim separate maintenance allowance. It is somewhat peculiar case wherein the appellant is old aged woman and so also respondent No. 1 is old man of about 74 years and they are involved in matrimonial dispute without any past history of dispute in the last 48/50 years. Admittedly, proposal of marriage of the appellant with respondent No. 1 was mooted through his paternal uncle, namely, Vithal.

The wife of said Vithal hailed from village Naur and was in relation with natural family members of the appellant. This admitted fact has some significance in the context of the disputed question of marital status of the appellant. There is also no dispute about the fact that father of the respondent No. 1 had died while he was in the womb of his mother. The respondent No. 1 categorically stated in his pleadings and the affidavit that he and his mother were under care and protection of his uncle i.e. Vithal. Needless to say, said Vithal was his caretaker and used to look after his welfare after death of his father. There is also no dispute about the fact that the appellant did not marry anyone else, nor the respondent No. 1 entered into wedlock with any woman during the entire period of 48/50 years.

Why then the dispute cropped up at the old age of the appellant and the respondent No. 1 ? The answer is not far to seek. The dispute triggered off only because the respondent No. 2 claimed himself to be adopted son of the respondent No. 1 and there was eminent danger that the properties of the respondent No. 1 would be taken over by him.

11. It is in the wake of above admitted fact situation that the evidence of the parties needs to be scrutinized with realistic approach. The appellant adduced oral and documentary evidence in support of her case. So far as factum of marriage is concerned, the legal presumption arising out of long term consortium of a man and woman is unavailable. The learned advocate for the appellant invited my attention to observations in "Ranganath Ranganath Parmeshwar Panditrao Mali and other v. Eknath Gajanan Kulkarni and another" AIR 1996 S.C. 1290.

1290 The Apex Court held

that the presumption available under section 112
the Evidence Act can be raised when the man and
woman were found living together as husband and

for considerable period.

The legality of the marriage

can be presumed on account of long term joint residence of a man and woman under the same roof.

the present case, however, it is nobody's case

the appellant and the respondent No. 1 reside

together under one roof for a considerable period.

What is asserted by the appellant is that she resided

with him for about a couple of years and

thereafter driven out of the matrimonial house.

is hardly any evidence about her joint residence with

him, except and save her own statement and

statement of PW4 Gangubai, in this context.

12. The marriage under the Hindu law is sacred ceremony. The averments in the present case would show that the marriage was allegedly performed somewhere in in the year 1957. The proof of such marriage must have faded due to passage of such long drawn period. The Trial Court was cognizant of such fact situation. The Trial Court, however, seems to have made contradictory observations in this context.

It is observed at fag end of para 24 of the impugned judgement, as stated below :

"...She has only stated that, there was a marriage in between her and defendant No. 1, but it remained unexplained that when mother of defendant No. 1 had refused the proposal of her marriage with defendant No. 1 then how again this marriage was settled and performed.

It has to bear in mind that, there is
cohabitation in between plaintiff
defendant No. 1 since long. In

situation, strong evidence on the point of

performance of the marriage is expected."

It is surprising to note, however, that the Trial Court again, at the opening of para 25 of the impugned judgement, observed :

"One may say that as marriage is performed long back i.e. prior to 48 years, evidence on the point of actual performance of the marriage cannot be expected. Certainly, this submission may be impressive prima facie but in present case when admittedly plaintiff is not residing with defendant No. 1 since last 45 to 46 years, acceptable and strong evidence on the point of performance of marriage is expected....."

13. It is difficult to appreciate what kind of "strong evidence" was expected by the learned Trial Judge when due to passage of such long period, the eye witness account of the concerned priest and other independent witnesses may not be available.

14. The degree of proof required in matrimonial cases arising out of the matrimonial proceedings in the Civil cases and in respect of criminal offences would defer from each other. Mr. Sapkal seeks to rely on "Bhaurao Bhaurao Shankar Lokhande and another v. The State of Maharashtra and another", (AIR 1965 S.C. 1564).

1564 The Apex Court considered question of culpability under section 494 of the Indian Penal Code and in the given context, held that the word "solemnized" means in connection with a marriage, to celebrate and in due form. There cannot be two opinion about the legal position that in criminal cases, likewise one for offence under section 494 of the I.P.C., strict proof regarding factum of marriage including performance of the requisite ceremonies is required to be proved. The ceremonies which are required to be proved are :

(i) invocation before the sacred fire, and

(ii) saptapadi i.e. taking seven rounds by the bridegroom and the bride jointly before the sacred fire.

This legal position is explicit in view of observations in the treatise on "Hindu Law" (Mulla) 12th Edi. at page 65.

15. The learned Judge of the Trial Court was much impressed by the fact when the proposal was disapproved by mother of the respondent No. 1, and therefore, there was hardly any possibility of the performance of the marriage. It is important to note, at this juncture itself, that mother of the respondent No. 1 was not in dominating position at the relevant time. The affidavit of the respondent No. 1 seems to have been improperly construed by the Trial Court.

What is stated in the pleadings and affidavit of the respondent is that his paternal uncle - Vithal Balwant Lokhande, and relatives of the appellant proposed the marriage of the appellant with him, but while considering the proposal, his mother and himself noticed that she was minor and "ardhawati" (-----) i.e. having imperfect understanding or immature and somewhat leaning towards silliness. It was for such a reason that he and his mother firmly denied the proposal for the marriage. He did not, however, explain as to what kind of silliness was noticed by him. His affidavit (Exh-98) would show that the appellant as well as he himself were minors at the relevant time. One has to consider the then prevailing atmosphere in a traditional Hindu society.

The parties are members of 'Maratha' caste. They belong to ilk of agriculturists. The father of the respondent No. 1 had died before he was born.

Admittedly, his paternal uncle - Vithal Balwanta Lokhande, was the 'karta' of the joint Hindu family, or at least was having significant role to play in the matrimonial matters. His mother and he himself were under the protection and care of his paternal uncle -

Vithal. It is but natural that said Vithal Balwanta Lokhande could have the final word in the context of the marriage which was to be performed. Obviously, merely because the appellant was not approved by the mother of the respondent No.1, it could not be said that the marriage must not have been performed. One cannot be oblivious of the fact that in those days, in the traditional Hindu families, the decision in context of such marriages could be taken by the elder male members of the family and consultation with the female members was a rare phenomenon.

16. The testimony of PW Geetabai (appellant) reveals that she married the respondent No.1 and resided with him for about couple of years. She deposed that after couple of years, he drove her out of the matrimonial home. Her version purports to show that for many years, she and her relatives made efforts for reconciliation, but he did not maintain her. The Trial Court considered certain admissions of PW Geetabai while rejecting her testimony. She admits, no doubt, that she narrated the facts shown in the plaint as per instructions of her brother. Her version reveals that she was unable to locate village panchayat number of house in which respondent No. 1 was residing nor she

was able to locate area thereof.

She was unable to tell details about direction in which the entrance of his house is situated. Still, however, she deposed that the house of the respondent No. 1 comprises of two (2) rooms and also gave names of the adjoining house owners. She admits, unequivocally, that the respondent No. 1 is person of good nature and bears good character. She also admits that he is not addicted to any vice. It is due to such admissions that the averments in the plaint regarding immoral conduct of the respondent No. 1 are held as baseless. It cannot be ignored, however, that the averments in the plaint are not originated as per instructions of the appellant, but they are at the behest of her brother. She cannot be stamped as a 'liar' due to such baseless allegations made in the plaint. Her cross-examination reveals that one Gangadhar Guru was the priest and had performed the ceremonies of the marriage. She states that said Gangadhar Guru is not alive. The entire tenor of her evidence and cross-examination would make it amply clear that she is candid and did not make any attempt to support the unfounded allegations about the womanizing of respondent No. 1 or his being a man of bad character. Secondly, it can be gathered that she is a woman of normal understanding. There is no material on record to infer that she is immature, or a woman of imperfect understanding, or a woman with element of half mental growth (-----). So, it does not stand to reason that due to her being "-----", the proposal of the marriage could be rejected by the family members of the respondent No.1. She admits, unequivocally, that when the marriage proposal was put forth, father of the respondent No. 1 was not alive.

She further admits that then mother of the respondent No. 1 had disapproved the marriage proposal. As stated earlier, this admission of the appellant reveals her candidness. It need not be reiterated that the proposal was approved or rather mooted by paternal uncle of the respondent No. 1, namely, Vithal Balwanta Lokhande and he was the 'karta' of the family. So, his word could have carried much weight.

His wife was in relation with the natural family members of the appellant and, therefore, the will of paternal uncle of the respondent No. 1 could be dominant factor at the material time. These ground realities ought to have been properly considered by the learned Trial Judge.

17. Why such an illiterate and candid woman should set up a false claim of her status as wife of the respondent No. 1 ? There appears no satisfactory answer coming forth. There was no dispute between the two (2) families since about 45/46 years. The appellant and the respondent No. 1 are residing at village Naur and Belapur, respectively. The version of respondent No. 1 would show that there was no dispute in between his natural family members and the paternal family members of the appellant before he had gone to see the appellant in pursuance to the marriage proposal. His version reveals that village Naur is situated on northern side of the boundary of Vijapur town.

18. The testimony of PW3 Smt. Gangubai would show that she attended marriage between the appellant and the respondent No. 1. Her version reveals that the marriage was performed somewhere in 1957. She deposed that the marriage ceremony was performed in front of residential wada (house) of father of the appellant at village Naur. Her version further shows that the said marriage was solemnized in accordance with the tenets and rites of Hindu religion. She narrated

that holy fire (-----) was invoked, 'kanyadan' ceremony was performed and all other requisite ceremonies were performed in her presence. She is the cousin sister-in-law of the appellant. Her version further shows that the appellant is recognized as wife of the respondent No. 1 since the time of said marriage by all the relatives. Her testimony reveals that after couple of years of the marriage, the appellant was driven out of the matrimonial house and, therefore, she had returned to house of her parents at village Naur. The cross-examination of PW Gangubai revealed that she was unable to locate age of her eldest son as well as the exact year of his marriage. She was also unable to locate as to how many years prior the marriage of her second son was performed. She could not give details of the period of marriage of her three (3) daughters. She was unable to locate age of the appellant at the time when the marriage proposal was under consideration. She volunteered, however, that she was not present at the relevant time. She admits that her father-in-law by name Govindrao and father of the appellant were cousins. The Trial Court discarded her testimony for the reason that she is an interested witness and also because she was unable to give details about period of marriages of her sons and daughters. Her affidavit bears thumb impression. She is an illiterate old woman aged about 78 years. The testimony of PW Gangubai could not be lightly brushed aside only because she could not locate as to how many years prior the marriages of her sons and daughters were performed. The illiterate and rustic woman may not have immediately recollected such details during course of cross-examination. She appears to be natural witness having regard to her relationship with the appellant. Had she been a tutored witness, probably, she would have come prepared with all the details of the marriages in the family. Her version reveals that she was given gift as token of respect (-----) in the said marriage. As a relative, may be the cousin daughter-in-law of father of the appellant, she was naturally the invitee and is the person having knowledge of the marriage ceremony.

19. The factum of marriage between the appellant and respondent No. 1 is further corroborated by PW4 Laxman. His version reveals that the marriage was performed between the appellant and the respondent No. 1 in or about 1957. He admits that he was about 5/7 years old at the time of Independence of the Nation.

He belongs to 'mang' community and is inhabitant of village Naur. His version reveals that the appellant was recognized as wife of the respondent No.1. The Trial Court discarded his testimony for the reasons that he was around 17/18 years old at the time of the alleged marriage.

ig The Trial Court noticed that due to good relations between natural family members of the appellant, he might have claimed to have attended the marriage. The Trial Court observed that when there were other elder persons of Desai community in the village, there was no reason why such witnesses were not examined in preference to PW Laxman. In fact, the question is as to why his testimony can be discarded.

It is difficult to say that because there were some other witnesses available, the non-examination of such witnesses would destroy the credibility of PW Laxman.

He, no doubt, gave general statement as regards the performance of marriage without elaborating the ceremonies which were performed. That was not expected of him. For, he is member of lower

strata of the society i.e. scheduled caste, and in those days, could not have been prominently allowed to remain in proximity of place of the marriage. Moreover, the Trial Court found that his age was 15 to 17 years at the material time. Needless to say, as a young boy then he could have seen performance of the marriage as such, but was not expected to take keen interest in noticing what were the ceremonies which were being performed in the said marriage.

20. The appellant adduced evidence of PW2 Nanasaheb. He is an employee of District Cooperative Bank. His version reveals that there is bank account of the appellant with the Cooperative Bank, bearing account No. 4361. He deposed that the bank record indicated that the appellant had opened the account prior to March, 1995. He admitted, however, that address of the appellant is not shown on the original card which he had produced. The name of the account holder is shown as "Sow. Geetabai Madhavrao Lokhande". So also, PW5 Hemant corroborated the fact that a saving account in District Cooperative Bank, branch at Veergaon bearing No. 3071 stood in name of the appellant. His version shows that on 18th March, 1986, the appellant had opened the bank account wherein, name of her husband is shown as "Madhav Lokhande". The version of PW Hemant corroborates entries in the bank card (Exh-93). He corroborated recitals of letter (Exh-94).

21. The testimony of PW Hemant is dislodged by the Trial Court on the ground that identity of the bank account holder is not duly proved. The learned advocate for the respondents would submit that there is absolutely no evidence to show that the appellant had resided at village Babhulgaonganga under Vaijapur Taluka. He would point out that she categorically stated that she had left village Naur since many years. She did not know village Babhulgaonganga. As stated before, village Naur is adjoining the boundary (-----) of Vaijapur, which is a taluka place. It is probable that the bank account was opened in her name by her brother. As the Bank's branch is in Vaijapur Tehsil, some address of such village might have been given due to technical reasons. For, village Naur falls in Ahmednagar District whereas Tehsil place -

Vaijapur comes in limits of Aurangabad District.

Therefore, the appellant's admission that she does not know village Babhulgaonganga is of no much importance.

The respondent No. 1 did not pin-point whether there is any other woman of the same name at village Babhulgaonganga. Nor any such possibility is stated during testimony by the respondent No. 1.

22. There are entries in the voters list in the year 1999 and 1998 (Exh-67 and Exh-68, respectively) which show that name of the appellant was recorded in the voters list as Geetabai Lokhande and her husband's name was shown as Madhav Lokhande. These entries in the public record cannot be ignored without substantial reason. The entries in the voters list would show that the appellant was recognized as wife of the respondent. Atleast it can be said that she was claiming herself to be his wife in 1998 and 1999.

The appellant appears to be simple and candid woman.

It is improbable that such an illiterate and rustic woman would have set up a false claim of her being wife of the respondent No. 1 when the public record

viz. voters list came to be prepared. She is not

scheming woman.

ig No dispute was in contemplation

the relevant time. Obviously, such corroborative

piece of evidence ought to be given due weightage.

23. The version of respondent No. 1 comprises of bare denial to the factum of marriage. He vaguely stated that due to impediment created by relatives of the appellant in other proposals of marriage, those proposals had fizzled out and, therefore, he remained unmarried. He deposed that the members of the community used to avoid taking proposal of marriages to him due to such spokes put by the relatives of paternal family of the appellant. He did not examine any witness to show that members of the paternal family of the appellant had created any impediment in respect of his other marriage proposals. Needless to say, his remaining unmarried for such a long period is probably due to the fact that the marital relations between him and the appellant did exist and he was not interested in any other proposal thereafter or couldnot get opportunity of second marriage. The learned Judge of the Trial Court observed that the denial of the respondent No. 1 was firm. It is observed :

is firm in his evidence that, there was no marriage in between him and plaintiff. In the cross-examination also, nothing on record is brought to disbelieve the version of this witness."

The above observations of the learned Judge of the Trial Court are rather insufficient to attribute credence to the version of the respondent No. 1 -

Madhav. It is of common knowledge that mere denial need not be loosely worded. An empathetic denial, however, by itself does not give indication of the version being a gospel truth. It is easy to offer denial to a fact and difficult to prove such a fact.

The cross-examination of DW1 Madhav (respondent No.1) reveals that his averment that the appellant was of imperfect understanding or half-mad is not at all corroborated and proved. It is difficult to appreciate as to how come that at the first blush, when he and his mother had seen the appellant on single occasion, he came to conclusion that she was half-mad. He himself alleges that he and the appellant were both minors at the relevant time. The interested and unacceptable version of DW1 Madhav is not sufficient to wipe out legal impact of the oral and documentary evidence tendered by the appellant.

24. In matrimonial cases, it is the duty of the Court to locate truth though the parties may indulge in blame game or attempt to hide some facts. The appellant though levelled false charge of womanising to the respondent yet very candidly did not subscribe to it in her oral evidence. However, the respondent No. 1 attempted to show that she was and is half mad.

This allegation is found to be untrue. The version of the appellant is corroborated due to entries in the voter's lists and Bank record. hence, her version about her marital status should have been accepted by the trial Court.

25. The versions of DW2 Dattatraya and DW3 Bhanudas pertain to execution of Adoption-Deed (Exh-106). It is not necessary to see whether the respondent No. 2 is legally adopted son of the respondent No. 1. The fact remains that for the first time, when the Adoption Deed (Exh-106) was brought into existence on 17th June, 2003, the appellant decided to exercise the right of maintenance. Until such overtact to impair her right arising out of matrimonial ties, she continued to reside with her brothers and paternal relatives without murmur.

26. The very conduct of the respondent No. 1 in denying matrimonial relations with the appellant would imply that he is unwilling to maintain her and has neglected her. In fact, the appellant came to the Court at the behest of her brother whereas the respondent No. 1 offered denial of her being his wife at the behest of the respondents No. 2 and 3. The appellant is entitled to claim separate maintenance in view of the fact that she has been deserted by the respondent No. 1 and he has neglected to maintain her. Her case is covered by provisions of Section 18 of the Hindu Maintenance and Adoption Act, 1956.

Having regard to the oldage of the respondent No. 1, it will have to be said that the earning capacity of the respondent No. 1 is impaired though he is owner of the agricultural lands. He admits that he owns 16 acres 8 gunthas land at village Belapur. He, however, denied that the entire land is irrigated. He owns a residential house of four (4) rooms. One cannot be oblivious of the difficulties of agriculturists in the context of present times. Considering family background of the parties, needs of the appellant in her old age and probable agricultural income of the respondent No. 1, it would be appropriate and reasonable to fix an amount of Rs. 2000/- p.m. as maintenance allowance payable to the appellant. Her claim for Rs. 25,000/- p.m. is too much exorbitant and unreasonable.

26. It may be mentioned here that the learned advocate for the respondent No. 1 placed reliance on various authorities viz. :

(i) Bhausahab alias Sandu s/o Raghuji Magar v.

Smt. Leelabai w/o Bhausahab Magar, AIR 2004 BOM 283

(ii) Surjit Kaur v. Garja Singh and others AIR 1994 S.C.135.

S.C.135

(iii) Joyita Saha v. Rajesh Kumar Pandey AIR 2000 CALCUTTA 109

(iv) Smt. Yamunabai Anantrao Adhav v.

Anantrao Shivaram Adhav and another AIR 1988 S.C. 644

(v) Savitaben Somabhai Bhatiya v. State of Gujarat and others AIR 2005 S.C. 1809 It is not necessary to discuss ratio of all these authorities since each of them is rendered in different fact situation. The ratio of either of the authority is not on contextually applicable to the facts and questions involved in the present case.

27. For the reasons aforesaid, I am inclined to hold that the impugned judgement is unsustainable and the appellant is entitled to seek separate maintenance allowance at rate of Rs. 2000/- per month. Hence, the appeal is allowed. The impugned judgement is set aside. Instead of dismissal of the suit, the following final order is substituted.

"The suit is decreed. The plaintiff shall recover maintenance allowance at rate of Rs.

2000/- (rupees two thousand) per month from the respondent No. 1. The charge of the maintenance allowance is created from the date of the suit till the plaintiff is alive or till the respondent No. 1 is alive, as the case may be and is kept on the agricultural properties shown in para No. 1 of the plaint."

. The parties to bear their own
throughout."

[V.R. KINGAONKAR]
JUDGE

NPJ/FA3781-08